

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 HOUSE
5 RESOLUTION 1042

By: Sneed

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9 AS INTRODUCED

10 A Resolution emphasizing the State of Oklahoma's
11 interest in CompSource Mutual Insurance Company;
12 recognizing the existence of CompSource Mutual
13 Insurance Company as an entity ensuring compensation
14 under current workers' compensation laws; emphasizing
15 that all monies and assets of CompSource Mutual
16 Insurance Company are held in trust; and emphasizing
17 the public's interest in CompSource Mutual Insurance
18 Company.

19 WHEREAS, CompSource Oklahoma was allowed by the Legislature to
20 become a mutual insurance company, CompSource Mutual Insurance
21 Company, effective January 1, 2015, for the purpose of insuring
22 employers against liability for compensation under the
23 Administrative Workers' Compensation Act, the Oklahoma Workers'
24 Compensation Code, and previous workers' compensation laws; and

1 WHEREAS, because of the State Insurance Fund, the predecessor of
2 CompSource Mutual Insurance Company, was created with taxpayer
3 funds, the State of Oklahoma continues to have an important and
4 vital interest in the operation of the company; and

5 WHEREAS, CompSource Mutual Insurance Company exists for the
6 purpose of assuring compensation for the persons entitled thereto
7 provided by workers' compensation laws, and for the further purpose
8 of insuring persons, firms, and corporations against loss, expense,
9 or liability by reason of bodily injury, death by accident,
10 occupational disability, or occupational disease suffered by
11 employees, for which the insured may be liable or have assumed
12 liability; and

13 WHEREAS, CompSource Mutual Insurance Company may further provide
14 insurance for employers against liability incurred as the result of
15 injuries sustained by employees engaged in employment subject to the
16 Longshore and Harbor Workers' Compensation Act, 33 U.S.C., Section
17 901 et seq., or employees engaged in employment subject to Title IV
18 of the Federal Coal Mine Health and Safety Act of 1969 as amended by
19 the Black Lung Benefits Act of 1972, as enacted or as may be amended
20 by the Congress of the United States; and

21 WHEREAS, the Supreme Court of Oklahoma has determined that the
22 creation of CompSource Mutual Insurance Company, as a successor to
23 the State Insurance Fund and CompSource Oklahoma, was a proper use
24 of legislative power under the Constitution of Oklahoma; and

1 WHEREAS, the Supreme Court found, and the Legislature affirms,
2 that all monies and other assets of CompSource Mutual Insurance
3 Company are held in trust for the benefit of the insured employers
4 or policyholders.

5 NOW, THEREFORE, BE IT RESOLVED BY THE HOUSE OF REPRESENTATIVES
6 OF THE 2ND SESSION OF THE 60TH OKLAHOMA LEGISLATURE:

7 THAT it is a matter of public interest to establish public
8 policy that Oklahoma maintains a statutory workers' compensation
9 system in which employers may obtain insurance to cover their
10 liability for benefits for workers injured in the course of their
11 employment as prescribed by the workers' compensation laws.

12 THAT CompSource Mutual may never transition into a stock
13 insurance company.

14 THAT CompSource Mutual can only transition into a mutual
15 insurance holding company if it pays every policyholder their fair
16 and equitable ownership interest as owners and trustees of
17 CompSource Mutual.

18 THAT CompSource Mutual Insurance Company shall not be considered
19 a state agency, public body, department, or any other term used to
20 describe an entity which is a part of the Executive Branch of the
21 State of Oklahoma under any Oklahoma statute or regulation, except
22 as otherwise provided for in this resolution.

23 THAT CompSource Mutual Insurance Company is hereby prohibited
24 from pursuing any means to change its corporate structure from the

1 mutual insurance company previously allowed by the Legislature
2 except for the change to a mutual insurance holding company.

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4 DIRECT TO CALENDAR.

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